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profitability and lower reputational risk. In contrast, firms adhering to minimalist governance frameworks often face higher volatility due to reputational or ethical lapses. The absence of ESG oversight in the 2024 Code also raises legitimacy theory concerns (Suchman, 1995). As societal expectations evolve, legitimacy becomes conditional upon visible ethical and environmental commitment. The UK, once lauded for pioneering governance leadership through the Cadbury Report (1992), now risks reputational decline by lagging behind progressive jurisdictions. The German Corporate Governance Code (2023) explicitly requires ESG disclosures, while Japan's 2021 revision mandates diversity targets for listed firms. The King IV Report (South Africa, 2016) goes further, framing sustainability as a moral obligation rather than an



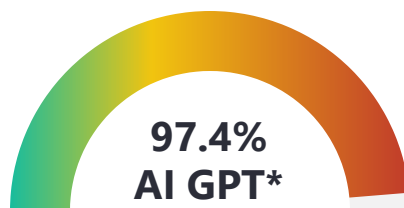
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Critically, "good corporate governance" in the 21st century demands adaptive accountability, balancing the predictability of control systems with responsiveness to social and environmental expectations. The King IV Report (South Africa, 2016) articulates this by framing governance as "ethical and effective leadership", blending performance and accountability within a sustainability context. The UK's 2024 Code, while technically rigorous, appears conceptually dated in comparison. Its alignment with agency theory improves oversight, yet its detachment from stakeholder and legitimacy frameworks diminishes its moral and societal legitimacy. Therefore, while the 2024 Code strengthens procedural discipline, it does not substantially advance the holistic ideal of good corporate governance. Its benefits lie in reinforcing accountability, but its weaknesses, particularly the exclusion of ESG and inclusivity dimensions, reflect a missed opportunity for the UK to redefine governance as both ethically grounded and globally competitive.

Neglected Dimensions: Sustainability, Diversity, and ESG Governance

The 2024 UK Corporate Governance Code represents a notable retreat from the broader ambitions set out in the 2023 consultation, particularly regarding environmental, social, and governance (ESG) integration, diversity, and inclusion. These omissions raise fundamental concerns about whether the Code adequately reflects contemporary conceptions of "good corporate governance". The Financial Reporting Council (FRC) initially proposed expanding the role of audit committees to oversee sustainability and ESG assurance, recognising the growing intersection between financial integrity and environmental responsibility (FRC, 2023). By removing these provisions, the final Code reverts to a traditional, control-centric model of governance, potentially undermining the UK's capacity to meet evolving market and stakeholder expectations.

Sustainability is increasingly recognised as intrinsic to long-term governance effectiveness. The OECD Principles of Corporate Governance (2023) highlight sustainability as a determinant of risk management and capital allocation, urging boards to integrate environmental and social factors into decision-making. Empirical evidence supports this shift: firms with robust ESG governance structures outperform peers in both financial and reputational metrics (Eccles and Klimenko, 2019; Khan et al., 2016). Similarly, Bloomberg (2024) reports that 75% of global investors now regard ESG performance

as a proxy for sound management and resilience. The absence of sustainability oversight in the UK Code risks eroding international confidence in the UK market, especially when global frameworks like the EU CSRD (2023) and the US SEC's proposed Climate Disclosure Rules (2024) are mandating ESG transparency.

The exclusion of diversity and inclusion provisions similarly weakens the Code's strategic relevance. Research consistently links board diversity to enhanced decision quality, innovation, and corporate legitimacy (Adams and Ferreira, 2009; Terjesen et al., 2016). Studies by McKinsey (2023) reveal that companies in the top quartile for gender and ethnic diversity are 39% more likely to outperform financially. Beyond performance, diversity strengthens stakeholder trust and mitigates groupthink in risk governance (Bear et al., 2010). The FRC's decision to omit expanded diversity expectations, despite the Parker Review (2023) calling for continued progress on ethnic representation, suggests a regression from inclusive governance ideals. This contradicts the resource dependency theory perspective that diverse boards enhance access to strategic knowledge and networks (Hillman et al., 2009), thereby improving adaptive capacity.

From a stakeholder theory lens (Freeman, 1984), neglecting ESG and inclusivity dimensions represents a narrowing of corporate purpose. Modern governance is expected to balance the interests of shareholders, employees, consumers, and society. When governance codes fail to codify these expectations, they risk legitimising shareholder primacy at the expense of social accountability. Evidence from the World Economic Forum (2023) indicates that stakeholder-aligned companies exhibit greater long-term profitability and lower reputational risk. In contrast, firms adhering to minimalist governance frameworks often face higher volatility due to reputational or ethical lapses. The absence of ESG oversight in the 2024 Code also raises legitimacy theory concerns (Suchman, 1995). As societal expectations evolve, legitimacy becomes conditional upon visible ethical and environmental commitment. The UK, once lauded for pioneering governance leadership through the Cadbury Report (1992), now risks reputational decline by lagging behind progressive jurisdictions. The German Corporate Governance Code (2023) explicitly requires ESG disclosures, while Japan's 2021 revision mandates diversity targets for listed firms. The King IV Report (South Africa, 2016) goes further, framing sustainability as a moral obligation rather than an optional practice. These frameworks collectively demonstrate that global governance is evolving toward inclusivity, purpose, and ethical stewardship. The UK's failure to embed these priorities could weaken its global competitiveness as investors increasingly align capital flows with sustainability metrics. Essentially, ESG and diversity governance are not peripheral issues; they form the moral architecture of modern corporate accountability. Their omission from the 2024 Code signals a regulatory

philosophy that values control over conscience, compliance over commitment. As Solomon (2023) argues, sustainable governance requires integrating environmental and social accountability into corporate DNA rather than treating them as supplementary disclosures. The FRC's retreat from these principles may therefore achieve short-term regulatory simplicity at the cost of long-term trust, resilience, and legitimacy.

International Benchmarking and Recommended Revisions

The evolution of corporate governance worldwide demonstrates a gradual convergence toward integrated accountability that combines financial oversight, ethical leadership, and sustainable value creation. The 2024 UK Corporate Governance Code, while reinforcing internal control, diverges from this trajectory. Comparative analysis with international governance systems, particularly those of South Africa, Germany, Japan, and the OECD framework, reveals key deficiencies and pathways for reform.

The King IV Report (South Africa, 2016) provides perhaps the most progressive model of governance globally. It reframes corporate governance around the principle of "ethical and effective leadership," integrating performance, accountability, and sustainability within a unified framework. King IV's approach transforms governance from a compliance mechanism into a system of moral stewardship, mandating that boards disclose how their decisions contribute to long-term societal value. This principle-driven model contrasts sharply with the UK's rules-based orientation, where governance often remains procedural. Adopting similar outcome-based disclosures, like integrated sustainability reporting and leadership ethics statements, could strengthen the UK Code's moral coherence and societal legitimacy.

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